

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3727

By: Shaw

AS INTRODUCED

An Act relating to lobbying regulation; prohibiting political subdivisions from spending public funds on hiring a lobbyist or paying a nonprofit state association or organization that hires lobbyists; clarifying activities not prohibited; creating right of action for taxpayers or residents to seek injunctive relief; directing award of attorney fees and costs for prevailing taxpayers or residents; prohibiting former members of Legislature from registering as lobbyists for certain period; prohibiting renewal of former members of Legislature as lobbyists for certain period; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 4000 of Title 74, unless there is created a duplication in numbering, reads as follows:

A. A political subdivision may not spend public funds:

1. To hire an individual required to register as a lobbyist for the purpose of lobbying a member of the Legislature; or

2. To pay a nonprofit state association or organization that:

a. primarily represents political subdivisions, and

1 b. hires or contracts with an individual required to
2 register as a lobbyist under Rule 5 of Appendix I of
3 Title 74 of the Oklahoma Statutes.

4 B. Subsection A of this section does not prohibit:

5 1. An officer or employee of a political subdivision from
6 providing information for a member of the Legislature or appearing
7 before a legislative committee;

8 2. An elected officer of a political subdivision from
9 advocating for or against or otherwise influencing or attempting to
10 influence the outcome of legislation pending before the Legislature
11 while acting as an officer of the political subdivision;

12 3. An employee of a political subdivision from advocating for
13 or against or otherwise influencing or attempting to influence the
14 outcome of legislation pending before the Legislature if those
15 actions would not require a person to register as a lobbyist;

16 4. A political subdivision from reimbursing an officer or full-
17 time employee of the political subdivision for direct travel
18 expenses incurred by the officer or employee for engaging in an
19 activity described by paragraph 1, 2, or 3 of this subsection; or

20 5. A full-time employee of a nonprofit state association or
21 organization that primarily represents political subdivisions of
22 this state from:

23 a. providing legislative services related to bill
24 tracking, bill analysis, and legislative alerts,

- 1 b. communicating directly with a member of the
2 Legislature to provide information if the
3 communication would not require a person to register
4 as a lobbyist, or
5 c. testifying for or against legislation before the
6 Legislature.

7 C. If a political subdivision engages in an activity prohibited
8 by subsection A of this section, a taxpayer or resident of the
9 political subdivision is entitled to appropriate injunctive relief
10 to prevent further activity prohibited by that subsection and
11 further payment of public funds related to that activity.

12 D. A taxpayer or resident who prevails in an action under
13 subsection C of this section is entitled to recover from the
14 political subdivision the taxpayer's or resident's reasonable
15 attorney fees and costs incurred in bringing the action.

16 SECTION 2. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Rule 5.30, Appendix I of Title 74,
18 unless there is created a duplication in numbering, reads as
19 follows:

20 Beginning on January 1, 2027, no former member of the Oklahoma
21 House of Representatives or the Oklahoma State Senate may work or
22 register as a lobbyist until six (6) years after their last term has
23 expired. Former members of the Legislature who have become
24 registered lobbyists prior to January 1, 2027, shall not be eligible

1 for renewal of their registration until six (6) years after their
2 last term has expired.

3 SECTION 3. This act shall become effective November 1, 2026.

4

5 60-2-14692 MJ 01/13/26

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24